

Subdivision, Consolidation and Boundary Adjustments

4 Subdivision, Consolidation and Boundary Adjustments

4.1 General

Common subdivision types include Torrens title (including boundary adjustments and consolidation), Strata title, and Community title. Subdivision and amalgamation of land allows for future development in a manner which may be different to its original state in regard to its use or intensity. It is therefore important to consider the future development potential of land and the potential impacts it may have on existing land uses and networks within the vicinity.

Such consideration may result in limitations being placed on the subdivision and amalgamation including maximum building envelopes, minimum setbacks, building heights, zoning, connectivity, and environmental management requirements to ensure future development does not adversely impact on the surrounding locality.

Objective		**Control**	
O1.	Subdivision or amalgamation: a. is consistent with the prevailing or desired lot pattern b. minimises the degree and scale of likely adverse impacts of subdivision and development on the amenity of neighbouring properties	**C1.**	Subdivision or amalgamation must not compromise any significant features of the existing or adjoining sites including streetscape character, landscape features or trees.
O2.	To ensure new allotments are capable of accommodating development that reflects and reinforces the desired future character of the area.	**C2.**	Where no minimum lot size exists for a site under *Bayside Local Environmental Plan 2021,* any proposed subdivision or amalgamation must have characteristics similar to the prevailing subdivision pattern of lots fronting the same street, in terms of area, dimensions, shape and orientation. **Note**: Council generally considers the 'prevailing subdivision pattern' to be the typical characteristic of up to ten allotments on either side of the subject site and corresponding number of allotments directly opposite the subject site. Properties located in the surrounding streets do not usually form part of the streetscape character and are therefore not taken into consideration when determining the prevailing subdivision pattern.
O3.	To prevent the fragmentation of land which would prevent the achievement of the extent of development and nature of uses envisioned for particular locations.		
O4.	To prevent the intensification of residential land uses in environmentally sensitive locations.		
O5.	To avoid increasing the community's exposure to coastal hazards.		
O6.	To ensure that lot sizes allow buildings to be sited to protect natural or cultural features including Heritage Items and retain special features such as trees, landscaping, and views.	**C3.**	Subdivision results in a density of dwellings that is consistent with that prevailing in the surrounding area.
O7.	To ensure lots have a usable site frontage within business zones.	**C4.**	Applications must demonstrate that the following has been considered: a. site topography and other natural and physical features b. existing services c. existing vegetation d. existing easements or the need for new easements
O8.	To ensure that the creation of new lots does not result in a reduction of		

Objective		Control	
	pedestrian or vehicular connectivity within the existing street network and provides safe access points and servicing areas.		e. vehicle access f. any land dedications required (e.g. road widening) g. existing vegetation h. potential flood affectation and stormwater management requirements i. contamination of the land j. existing buildings or structures k. heritage Items, Conservation Areas and adjoining Heritage Items
O9.	Development is to: a. avoid the creation of isolated sites b. encourage the development of existing isolated sites in a manner that responds to the site's context and characteristics and that maintains a satisfactory level of amenity		**Note**: Development Applications for subdivision where in the Council's opinion will create a new lot that contains significant features, such as streetscape character, landscape features or trees, the DA is to include the construction of any buildings on the new allotment and the residual allotment.
O10.	To ensure access is provided for new allotments.		
O11.	To ensure new allotments have adequate stormwater drainage.		
O12.	To ensure subdivision maintains the efficiency and safety of the road network.	**C5.**	In accordance with the planning principles established under *Parrot v Kiama [2004] NSWLEC 77*, where a proposal for subdivision or site amalgamation involves the creation of new allotments that are smaller than typical allotments, are environmentally sensitive, or where it is considered that there could be significant impacts on neighbours as a result of future development, the development application must be accompanied by a conceptual building plan, demonstrating that the relevant DCP controls can be satisfied.
		C6.	Subdivision which results in additional residential allotments of land within an Australian Noise Exposure Forecast (ANEF) contour of 30+ is not permitted.
		C7.	Subdivision and amalgamation is not permitted in areas identified to be affected by projected 2100 sea level rise by NSW State Government unless it can be demonstrated that potential impacts can be mitigated (refer to Sydney Coastal Council and CSIRO – Mapping and Responding to Coastal Inundation, February 2012).
		C8.	Subdivision must not result in the creation of a new lot that contains significant site features that would render the land unable to be developed (e.g. creation of

Objective		Control	
			allotments that are solely burdened by easements, flooding, highly contaminated land, land that contains significant trees or land of a size which could not facilitate development as per the zoning and controls applicable to the land).
		C9.	Proposed lots shall have street frontage widths not less than the prevailing subdivision pattern within the business zone and are to have a compatible shape and orientation. Note: The prevailing subdivision pattern does not include the subdivision pattern shown in zones adjoining the business centre. Properties located in the surrounding streets do not usually form part of the streetscape character and are therefore not taken into consideration when determining the prevailing subdivision pattern.
		C10.	Developers are to demonstrate to Council's satisfaction that adjoining parcels not included in their development site are capable of being economically developed.
		C11.	The development of existing isolated sites is not to detract from the character of the streetscape and is to achieve a satisfactory level of residential amenity for its occupants. **Note**: Development of existing isolated sites may not achieve the maximum potential, particularly height and floor space ratio and will be assessed on merit.
		C12.	All lots created shall have at least one (1) frontage to the street.
		C13.	Inter-allotment draining easement is to be provided if any proposed lots are not able to drain stormwater runoff from the site to a street or public drain way.
		C14.	On corner allotments, the dedication to Council for road widening purposes is a minimum 3 metres splay.

Objective	Control

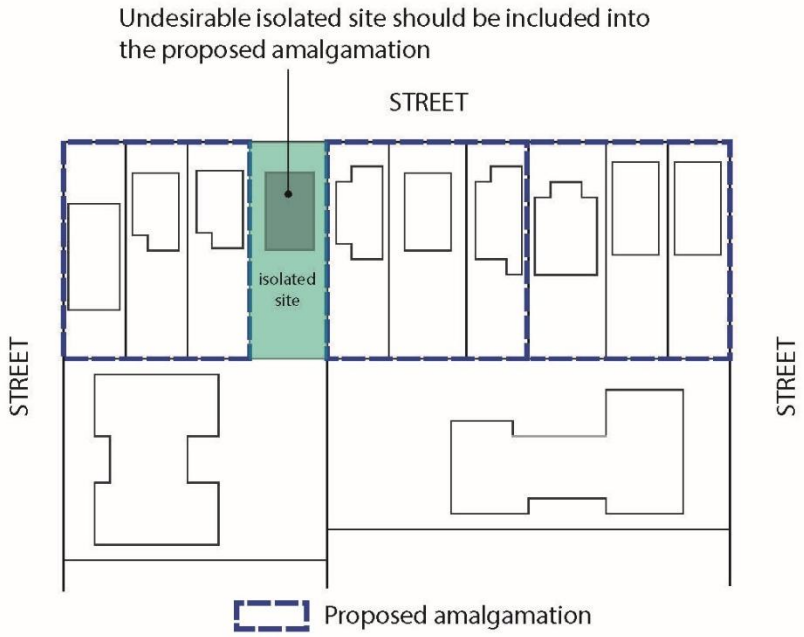


Figure 14: Example of an isolated site

4.2 Residential Subdivision

Objective		Control	
General			
O1.	To ensure adequate lot widths and depths to accommodate future development.	**C1.**	Each allotment in a proposed Torrens, Strata or Community title subdivision for dwelling houses, attached dwellings and semi-detached dwellings must have a frontage to a public road under the Local Government Act which has a width greater than 6m.
Battle-Axe Residential Subdivision			
O3.	To ensure battle-axe subdivisions: a. have sufficient size to enable development that complies with the Bayside LEP 2020 and this DCP b. respects the predominant subdivision pattern of the locality c. have sufficient access corridors	**C2.** **C3.** **C4.**	Battle-axe subdivision patterns are discouraged within residential zones unless it can be demonstrated that it is part of the prevailing subdivision pattern. Battle-axe subdivision patterns must result in one (1) or more allotments fronting the street and only one (1) allotment being serviced by a driveway access corridor. Any proposed battle-axe allotment without a frontage to the street must have a minimum site area of 450m² and width of 12m.

Objective		Control	
			Note: Battle-axe lots which are serviced via an access corridor are considered to be allotments without a frontage to the street. Where the access corridor is less than 8m wide, it shall not be included in the calculation of the minimum allotment area for either lot.
		C5.	The width of an access corridor to a battle-axe lot shall be at least 3.5m.
		C6.	Access corridors are to be located to ensure existing street trees are retained.

4.3 Non-Residential Subdivision

Objective		Control	
O1.	Subdivision in employment zones: a. facilitates opportunities for various industrial land uses within a locality b. ensures safe and efficient vehicle, pedestrian and bicycle access within and to and from a site c. prevent the excising of land that may be detrimental to the function of an existing continuing industrial use d. reduce potential adverse impact of industrial development.	**C1.**	The minimum allotment size permitted for industrial Torrens title subdivision or amalgamation of land is 1,500m² with a: a. minimum allotment width of 30 metres b. minimum allotment depth of 50 metres **Note**: All dimensions of the subdivision or amalgamation must be shown on detailed subdivision plans.
		C2.	Development Applications shall submit plans showing details of the vehicle access points, any internal road networks and/or driveways that require servicing each new allotment. The plans shall also demonstrate the following: a. there is sufficient turning area within the new allotment to accommodate the largest vehicles entering and leaving the site in a forward direction b. the vehicle crossing shall be designed so as not to interfere with the functioning of the existing road network by blocking lanes, or impacting on footpaths and kerbs or gutter.
		C3.	Any driveway/s required to service allotments must be designed to accommodate the largest vehicles assessing the site (based upon vehicle size

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			identified in AS2890.2). In any case the driveway is not to have a width less than 6m at the property boundary. **Note**: Council may require new road connections to be greater than 6m in width if cycleway and/or pedestrian footpaths are required. Any additional works required to the road network will be at the expense of the applicant
		C4.	Development Applications shall demonstrate that there is sufficient area to accommodate semitrailers or delivery vehicles (and their turning circles) which that may be permitted on the land as part of a future use.
		C5.	Any driveway servicing multiple allotments must be registered as a right of way easement for the benefit of all allotments created and maintain access to any existing allotment/s which currently has access arrangements through the subject site.

4.4 Strata Subdivision

Objective		Control	
O1.	Strata subdivision: a. ensures that the subdivision relates to a development or building which has received development consent b. ensures that common areas are clearly defined, access is maintained from all proposed strata allotments and they are appropriately managed	**C1.**	Strata title development applications must provide and demonstrate compliance with a development consent for the development proposed to be subdivided.
		C2.	Any communal areas (i.e. Common driveways or footpaths) or right-of-way easements (i.e. common driveways or footpaths) must be shown within the common property of the development to be managed either by a body corporate or strata body.
		C3.	Car parking associated with the development must be allocated to each individual strata title lot to be created and shown on the plan of subdivision to be submitted with the application. Visitor parking is to be included as part of common property.
		C4.	Development Applications shall demonstrate that the proposed strata

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			subdivision is compliant with the Building Code of Australia. If a development is not compliant with the BCA it must demonstrate how compliance will be achieved with the BCA. **Note**: Any non-compliance with the BCA including fire safety must be rectified prior to the issue of a Subdivision Certificate.
		C5.	Where roads are intended for public use under a Strata Title subdivision, they are required to comply with the current AUS – SPEC 1.

4.5 Community Title Schemes

Objectives		Controls	
O1.	To ensure all common areas in the community scheme area are appropriately nominated and managed.	**C1.**	Development Applications must submit a plan of the community title subdivision clearly identifying the common land to be managed by a community association.
O2.	To ensure the community title scheme are appropriate for the development of the land and surroundings.	**C2.**	Development Applications shall demonstrate that future development for the site can comply with all Parts of the DCP (i.e. setbacks, parking and private open space).
		C3.	Development Applications must submit a management plan for the common property to be maintained by the association and details of the proposed staging of any future development.
		C4.	Where roads are intended for public use under a Community Title subdivision, they are required to comply with the current AUS – SPEC 1.

4.6 Connectivity and Future Development Potential

Objective		Control	
O1.	To retain and enhance an interconnected and permeable movement network.	**C1.**	The subdivision of sites greater than 2,000m² and which have at least two (2) street frontages, must provide through site connectivity in the form of pedestrian pathways, cycle ways or new streets within the new subdivision pattern.
O2.	To ensure the layout of subdivisions including the location of streets and open		

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	space creates vibrant and safe public spaces.		
O3.	To ensure the layout of subdivisions including the location of streets and open space response to a site's constraints and opportunities and the adjoining and surrounding sites.	**C2.**	New streets are to be perpendicular to the existing street pattern and may require the upgrading of the existing street network to facilitate the new connection. **Note**: Any upgrading required to the existing street network (i.e. new signalised intersections, new footpaths/pedestrian pathways and/or servicing) will be at the expense of the applicant.
		C3.	Subdivision or amalgamation must not result in the isolation of lots or reduce the development potential of adjoining land. **Note**: Applicants may be required to submit plans clearly identifying the future development potential of adjoining land to ensure its development potential will not be adversely impacted.
		C4.	The isolation of parcels of land for the purpose of environmental protection is not permitted (i.e. the retention of significant trees or vegetation or the management of contaminated lands). This land must be incorporated into any future development and maintained by the landowner/s.
		C5.	Where a rear lane is provided to adjoining land, the laneway configuration must be continued through the new lot and existing access arrangements to adjoining land maintained.
		C6.	Subdivision or amalgamation must not result in any restriction to existing parcels of land within the vicinity of the site. The proposed subdivision or amalgamation must not rely upon other land being burdened (i.e. land downstream having to accept increased overland flows or on-site detention in order for land upstream to be developed).